Berman Separation: Draft vs. Counter Summary

Prepared for Jadian Capital by Parakeet Communities. September 26, 2026.

Where things stand

Parakeet, through employment counsel (Karen Doner, Doner Law), sent David Berman a draft separation agreement on September 14. His counsel (The Employment Law Group) returned a redlined counter on September 18, marked for settlement purposes only. The tables below lay the two positions side by side at a summary level. Parakeet and counsel are evaluating the counter and will come back to Jadian with a recommended path before anything goes back to his side.

Economics

Term	Parakeet draft (sent 9/14)	Berman counter (received 9/18)
Severance	$70,000 (4 months of base)	$420,000 (24 months of base)
Equity-related payment	None	$300,000, described as 1% equity he asserts was promised in Dec 2025. No such agreement exists.
2026 bonus	$52,500 prorated, payable by Jan 30, 2027	$52,500, payable within 1 business day of signing
Accrued vacation	To be paid out (hours to be confirmed)	$5,855.77 (58 hours)
Holdco II MIP units	4.25 vested units redeemed; price to be set; 10.75 unvested forfeited	4.5 vested units redeemed at $50,000; unvested forfeited
Leave period pay	Unpaid leave from stop-work date to termination date	Paid leave from stop-work date to termination date
Health premiums	None	Company pays premiums through termination date
Attorney fees	None	Company pays $10,000 of his legal fees
401k	None	Full vesting of unvested company contributions
Transition support	Included, uncompensated	$500/hr for anything beyond a simple question
Payment timing	Within 15 business days of signing	Within 1 business day of signing
Approximate total	About $128,000 plus MIP redemption price	About $838,000 in cash plus roughly $105,000 of paid leave, plus premiums, 401k vesting and hourly fees

His counter is roughly seven times the draft. The severance ask is 24 months against about 17 months of tenure. The $300,000 equity line has no underlying agreement; a profit participation form was drafted but never executed.

Timing

Milestone	Parakeet draft	Berman counter
Last day of active work	September 15, 2026	September 30, 2026
Termination date	December 31, 2026	March 31, 2027
Status in between	Unpaid leave of absence	Paid leave of absence
Characterization	Separation	Resignation for Good Reason
Second release (Reaffirmation)	Signed on termination date; payments tied to it	Still signed on termination date, but all payments made up front

The counter extends his employment by three months, converts the leave to paid, and moves every dollar to the day after signing, which leaves nothing tied to the second release on the termination date.

Other terms

Provision	Parakeet draft	Berman counter
Parties	Parakeet MHC, LLC and Parakeet Communities, LLC	Adds Jadian Capital as a party, with a signature block for Jarrett Cohen
Reference	Neutral reference (dates, title, salary) via HR	Adds a positive letter of recommendation on Jadian letterhead (Appendix B), plus a non-disparagement obligation on Jon, Austin and their spouses
Release	Employee releases the Company and affiliates	Adds a full mutual release from the Company and all affiliates to him, and a Company representation that it is not aware of any basis for a claim against him
Indemnification	Not addressed	Company duty to indemnify him for acts and omissions during employment, stated in three places
Clawback	Payments forfeited and repayable on breach	Deleted entirely
Non-compete	12 months	Deleted entirely
Non-solicit	24 months	24 months (unchanged)
Cooperation	Full transition and legal cooperation	Narrowed to advising and simple questions; legal cooperation

Provision	Parakeet draft	Berman counter
		removed; $500/hr beyond that
Governing law and venue	Delaware	Maryland
Fees on dispute	Employee pays Company fees on his breach	Prevailing party recovers fees

Two items involve Jadian directly and are flagged so nobody is surprised if his counsel reaches out: he has added Jadian as a signing party to the agreement, and he has asked for a positive letter of recommendation on Jadian letterhead. Parakeet's position is that neither is appropriate and both come out. We would ask that any contact from David or his counsel be routed to Karen Doner rather than answered directly.

Next steps

- Counsel acknowledges receipt of the counter with no substantive response while Parakeet completes its internal evaluation.
- Lowenstein reviews the treatment of his Holdco II MIP units under the Plan and Award Agreement.
- Parakeet and counsel settle on the recommended path and the terms of any response, and review that with Jadian before it is sent.
- Shared objective throughout: resolve this cleanly and without litigation ahead of the recapitalization.